



### CHAPTER viii.

An Act to make further provision with respect to the discharge of compensation waters from the water undertaking of the mayor aldermen and burgesses of the county borough of Huddersfield. [18th June 1908.] A.D. 1908.

**W**HEREAS the mayor aldermen and burgesses of the county borough of Huddersfield (in this Act called "the Corporation") are the owners of waterworks for the supply of the borough of Huddersfield and its neighbourhood:

And whereas by the Huddersfield Water Act 1869 (in this Act called "the Act of 1869") the Corporation were authorised to construct certain waterworks and take and appropriate certain waters in the reciting Act described including the reservoir and the waters referred to in the section of the said Act next herein-after recited:

And whereas by section 29 of the Act of 1869 it was enacted that as compensation for the taking of such waters by the reciting Act authorised to be taken as at the passing of that Act directly or derivatively flowed or proceeded into Hoyle House Clough the Corporation should cause to flow from the reservoir to be constructed at or near Blackmoor Foot down a pipe or aqueduct into Hoyle House Clough at a point between the embankment of the reservoir and the bridge at Blackmoor Foot two hundred and eighteen gallons of water per minute during the following hours of every lawful working day that is to say from six o'clock in the forenoon to six o'clock in the afternoon:

And whereas by the Huddersfield Corporation Waterworks Act 1890 (in this Act called "the Act of 1890") the Corporation were authorised to construct certain waterworks and take and



A.D. 1908. — appropriate certain waters in the reciting Act described including the reservoir and the waters referred to in the section of the said Act next herein-after recited :

And whereas by section 26 of the Act of 1890 it was enacted that as full compensation to all persons interested below the Butterley reservoir for the taking of such waters as were by the reciting Act authorised to be taken and appropriated by the Corporation for the purposes of their water undertaking the Corporation during the following hours of every lawful working day that is to say from six o'clock in the forenoon to six o'clock in the afternoon (except on Saturdays on which days the water should be delivered from six o'clock in the forenoon to twelve o'clock noon) should cause to flow from the Butterley reservoir down a pipe or aqueduct to the Wessenden Brook three thousand one hundred and thirty-seven gallons of water per minute inclusive of the compensation by the Act of 1869 required to be delivered to the Rams Clough :

And whereas by the Huddersfield Corporation Act 1902 (in this Act called "the Act of 1902") the before recited powers of the Corporation under the Act of 1890 were revived and continued and the recited section 26 of that Act was made to apply subject to a proviso that it should not apply until the said Butterley reservoir should be sufficiently watertight to the satisfaction of the Corporation or until the expiration of five years from the passing of the Act of 1902 whichever should first happen :

And whereas the said reservoir at or near Blackmoor Foot and the said Butterley reservoir have been constructed and completed and the Corporation are under and subject to the obligations with respect to the discharge of compensation water in accordance with the before recited provisions of the said recited Acts :

And whereas the Hoyle House Clough Mill-occupiers (in this Act herein-after defined) being the persons mainly interested in the discharge of the compensation water under the before recited provisions of the Act of 1869 and the Butterley Mill-occupiers (in this Act herein-after defined) being the persons mainly interested in the discharge of the compensation water under the before recited provisions of the Acts of 1890 and 1902 have (with three exceptions) respectively represented to the Corporation that if the said compensation waters respectively were discharged at the times and in the manner in the said



recited sections of the Acts of 1869 and 1890 respectively specified they would suffer serious loss and injury and would be greatly impeded in the conduct of their respective businesses: A.D. 1908.

And whereas it is just and expedient that the provisions of the Acts of 1869 1890 and 1902 respectively with respect to the discharge of compensation water should be amended as in this Act provided:

And whereas the objects aforesaid cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's Most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

1. This Act may be cited for all purposes as the Huddersfield Water Act 1908. Short title.

2. In this Act unless the subject or context otherwise requires— Interpretation.

“The borough” means the county borough of Huddersfield;

“The Corporation” means the mayor aldermen and burgesses of the borough;

“The town clerk” means the town clerk for the time being of the borough;

“The Act of 1869” means the Huddersfield Water Act 1869;

“The Act of 1890” means the Huddersfield Corporation Waterworks Act 1890;

“The Act of 1902” means the Huddersfield Corporation Act 1902;

“Hoyle House Clough Mills” means the mills described in the First Schedule to this Act;

“Butterley Mills” means the mills described in the Second Schedule to this Act;

“Hoyle House Clough Mill-occupiers” means the persons firms or companies occupying for the time being Hoyle House Clough Mills;

“Butterley Mill-occupiers” means the persons firms or companies occupying for the time being Butterley



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Mills except that in the case of such mills as are tenement factories the expression means the owners for the time being of such mills and the respective words "occupiers" and "occupied" when used in relation to any such mill being a tenement factory shall read respectively "owners" and "owned";

"Foot of fall of water" means each complete foot in depth of fall and any fractional part of a foot over and above a complete foot or a number of complete feet;

Words and expressions to which meanings are assigned by the Acts of 1869 1890 and 1902 have in this Act the same respective meanings unless there be something in the subject or context repugnant to such construction.

Amendment  
of section 29  
of Act of  
1869.

**3.** The provisions of section 29 (Compensation supply to Hoyle House Clough) of the Act of 1869 so far as the same relate to the rate at and the hours from and to which the compensation water referred to in such section shall flow into Hoyle House Clough are hereby repealed and in lieu thereof the following provisions shall have effect:—

The Corporation shall continue to cause to flow into Hoyle House Clough at the point in the said section described the total aggregate quantity of compensation water required by the said section to be so discharged namely one hundred and fifty-six thousand nine hundred and sixty gallons for and in respect of each lawful working day but such water shall be discharged as follows:—

As to six-sevenths part thereof by equal quantities per minute between the hours of six o'clock in the forenoon and six o'clock in the afternoon (the said part being referred to in this and the following section as "the day flow");

As to the remaining one-seventh part thereof by equal quantities per minute between the hours of six o'clock in the afternoon and six o'clock in the forenoon (the said part being referred to in this and the following section as "the night flow"):

Provided that the night flow for and in respect of each working day being Saturday shall be discharged between the



hours of six o'clock in the afternoon of the following Sunday A.D. 1908.  
and six o'clock in the forenoon of the next Monday :

Provided also that if the Corporation shall be required by notice in writing under the provisions of the section of this Act of which the marginal note is "Hoyle House Clough Mill-occupiers may require relative proportions of day and night flow to be varied" to vary the proportionate quantities of the day and night flows respectively as in such section provided the provisions of this section as from such date as the Corporation may determine not being more than one month from the service of the said notice on them shall be construed and have effect as if instead of the "six-sevenths" and "one-seventh" respectively there had been inserted therein the respective proportionate quantities as required by the said notice.

4.—(1) The occupiers for the time being of a majority of the Hoyle House Clough Mills may from time to time by such a notice in writing as is in subsection (3) of this section specified under their several hands addressed to the Corporation and served upon them by being delivered to the town clerk or left at his office require the Corporation to decrease or increase as the case may be the day flow to such a proportion of the total aggregate quantity of compensation water to be delivered in accordance with the provisions of the last preceding section for and in respect of each lawful working day as shall be stated in the notice and to increase or decrease as the case may be the night flow to a like extent but so that in no case shall either the said total aggregate quantity be increased or decreased or the day flow be less than one-half or more than six-sevenths part thereof.

Hoyle House  
Clough Mill-  
occupiers  
may require  
relative pro-  
portions of  
day and night  
flow to be  
varied.

(2) The signature of the said notice by each of the said occupiers shall be duly attested and in the case of any such occupier being a limited company the notice shall be signed on behalf of the company by the chairman or the secretary of such company.

(3) The Corporation upon being served with a notice purporting to be signed by persons representing themselves to be the occupiers for the time being of a majority of the Hoyle House Clough Mills and to be attested as in this section provided shall not be concerned to inquire whether all or any of the provisions of this Act have been complied with but such notice shall be sufficient authority to the Corporation to



A.D. 1908. discharge the said compensation water in accordance with the requirement thereof.

(4) Save by the consent of the Corporation there shall be an interval of not less than six months between any variation required under the provisions of this section and any further variation.

Hoyle House Clough mill-occupiers to bear expense occasioned by provisions of sections 3 and 4 of this Act.

5. The Hoyle House Clough Mill-occupiers who shall be in occupation on the first day of January in any year shall jointly and severally be liable to and shall on demand repay and make good to the Corporation all costs charges and expenses to which the Corporation shall have been put in the preceding year by reason of the provisions of the sections of this Act of which the marginal notes respectively are "Amendment of section 29 of Act of 1869" and "Hoyle House Clough Mill-occupiers may require relative proportions of day and night flow to be varied" and any such costs charges and expenses shall be recoverable as a civil debt.

Amendment of section 26 of Act of 1890.

6. The provisions of section 26 (As to compensation water) of the Act of 1890 and of section 14 (Provisions of recited Acts as to waterworks &c. to apply) of the Act of 1902 so far as the same relate to the rate at and the hours from and to which the compensation water referred to in such sections shall flow from the Butterley Reservoir down a pipe or aqueduct to the Wessenden Brook are hereby repealed and in lieu thereof the following provisions shall have effect:—

The Corporation shall continue to cause to flow into the Wessenden Brook the total aggregate quantity required by the said sections to be so discharged namely two million two hundred and fifty-eight thousand six hundred and forty gallons for and in respect of each lawful working day other than Saturday and one million one hundred and twenty-nine thousand three hundred and twenty gallons for and in respect of each lawful working day being Saturday but such water shall be discharged as follows:—

As to six-sevenths part thereof by equal quantities per minute between the hours of six o'clock in the forenoon and six o'clock in the afternoon of every lawful working day other than Saturday and of six o'clock in the forenoon and twelve o'clock noon on each lawful working day being Saturday (the said part being referred to in this and the following section as "the day flow");



As to the remaining one-seventh part thereof by equal quantities per minute between the hours of six o'clock in the afternoon and six o'clock in the forenoon (the said part being referred to in this and the following section as "the night flow"):

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Provided that the night flow for and in respect of each working day being Saturday shall be discharged between the hours of six o'clock in the afternoon of the following Sunday and six o'clock in the forenoon of the next Monday:

Provided also that if the Corporation shall be required by notice in writing under the provisions of the section of this Act of which the marginal note is "Butterley Mill-occupiers may require relative proportions of day and night flow to be varied" to vary the proportionate quantities of the day and the night flows respectively as in such section provided the provisions of this section as from such date as the Corporation may determine not being more than one month from the service of the said notice on them shall be construed and have effect as if instead of the "six-sevenths" and "one-seventh" respectively there had been inserted therein the respective proportionate quantities as required by the said notice.

7.—(1) The Butterley Mill-occupiers by resolution duly passed at a meeting of such occupiers duly called and conducted in accordance with the provisions of this section may from time to time require the Corporation to decrease or increase as the case may be the day flow to such a proportion of the total aggregate quantity of compensation water to be delivered in accordance with the provisions of the last preceding section for and in respect of each lawful working day as shall be stated in the resolution and to increase or decrease as the case may be the night flow to a like extent but so that in no case shall either the said total aggregate quantity be increased or decreased or the day flow be less than three-fourths or more than six-sevenths part thereof.

Butterley Mill-occupiers may require relative proportions of day and night flow to be varied.

(2) The meeting shall be held in the borough and shall be convened by a notice in writing under the several hands of the occupiers for the time being of not less than six of the Butterley Mills.

(3) The signature of the said notice by each of the said occupiers shall be duly attested and in the case of any such occupier being a limited company the notice shall be signed on behalf of the company by the chairman or the secretary of such company.



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(4) The said notice shall state the time and place of the intended meeting and the exact variation which it is desired to make and shall be advertised not less than fourteen days before the time fixed for the meeting in one or more newspapers published and circulating in the borough.

(5) Every Butterley Mill-occupier shall be entitled to attend the meeting personally (or in the case of a limited company by the chairman or secretary of the company) and shall have one vote in respect of each foot of fall of water (as set forth in the Second Schedule to this Act) at each of the Butterley Mills occupied by him for the time being but not more than one vote shall be allowed in respect of each such foot of fall.

(6) The first business of the meeting shall be to elect a chairman.

(7) The voting at the meeting shall be for or against the resolution desired as set out in the notice convening the meeting and no amendment shall be allowed to such resolution.

(8) The resolution or decision of the meeting shall be determined by a majority of the votes given and recorded thereat and any such resolution shall be binding upon all the Butterley Mill-occupiers.

(9) Any resolution requiring decrease and increase or increase and decrease as in the first subsection of this section provided shall be notified to the Corporation by such a notice in writing as is in subsection (10) of this section specified served upon them by being delivered to the town clerk or left at his office and any such notice shall be signed by the chairman of the meeting at which the resolution was passed and attested by one witness and there shall be recorded therein in addition to the resolution the date and place of the meeting and the names of the Butterley Mill-occupiers attending thereat.

(10) The Corporation upon being served with a notice purporting to be signed by a person representing himself to be the chairman of any such meeting and to be attested as in this section provided shall not be concerned to inquire whether all or any of the provisions of this Act have been complied with but such notice shall be sufficient authority to the Corporation to discharge the said compensation water in accordance with the requirement thereof.

(11) Save by the consent of the Corporation there shall be an interval of not less than six months between any variation required under the provisions of this section and any further variation.



**8.** The Butterley Mill-occupiers who shall be in occupation on the first day of January in any year shall jointly and severally be liable to and shall on demand repay and make good to the Corporation all costs charges and expenses to which the Corporation shall have been put in the preceding year by reason of the provisions of the sections of this Act of which the marginal notes respectively are "Amendment of section 26 of Act of 1890" and "Butterley Mill-occupiers may require relative proportions of day and night flow to be varied" and any such costs charges and expenses shall be recoverable as a civil debt.

A.D. 1908.  
Butterley  
Mill-occu-  
piers to bear  
expense  
occasioned  
by provisions  
of sections 6  
and 7 of this  
Act.

**9.** The Butterley Mill-occupiers or any of them who shall have paid the said costs charges and expenses shall be entitled to recover as a civil debt from the other Butterley Mill-occupiers or any of them their proportion thereof such proportion to be calculated according to the measurement or depth of fall of water at their respective mills.

As to re-  
covery of  
costs be-  
tween But-  
terley Mill-  
occupiers.

**10.** The forms given in the Third Schedule to this Act shall be used for the purposes indicated therein and the same forms or forms to the like effect with such variations or additions as circumstances require shall be effectual for those purposes.

Forms in  
schedule to  
be used.



A.D. 1908.      The SCHEDULES herein-before referred to.

FIRST SCHEDULE.

HOYLE HOUSE CLOUGH MILLS.

| Name of Mill.               | Situation of Mill. |
|-----------------------------|--------------------|
| Black Rock Mill - - - - -   | Linthwaite.        |
| Spring Grove Mill - - - - - | do.                |

SECOND SCHEDULE.

BUTTERLEY MILLS.

| Name of Mill.                                           | Situation of Mill. | Fall of Water<br>in Feet. |
|---------------------------------------------------------|--------------------|---------------------------|
| Bank Bottom Mill - - - - -                              | Marsden            | 21                        |
| Fall Lane Mill - - - - -                                | do.                | 17½                       |
| Marsden Mill (otherwise New Mill) -                     | do.                | 13½                       |
| Factory Mill - - - - -                                  | do.                | 12                        |
| Wood Bottom Mill - - - - -                              | do.                | 15                        |
| Cellars Clough Mill - - - - -                           | do.                | 28½                       |
| Holme Mill - - - - -                                    | do.                | 22                        |
| Shaw Carr Wood Mill - - - - -                           | Slaithwaite        | 18½                       |
| Upper Mill - - - - -                                    | do.                | 23½                       |
| Colne Mill - - - - -                                    | do.                | ½ of 16 = 8               |
| Old Corn Mill - - - - -                                 | do.                | ½ of 16 = 8               |
| Waterside Mill - - - - -                                | do.                | 16                        |
| Lees Mill - - - - -                                     | Golcar             | 19½                       |
| Upper Low Westwood Mill (otherwise<br>Lowestwood Mill). | do.                | 14½                       |
| Lower Low Westwood Mill - - - - -                       | do.                | 18                        |
| Ramsden Mill - - - - -                                  | do.                | 14                        |
| Ramsden Mill - - - - -                                  | Linthwaite         | 12                        |
| Britannia Mill - - - - -                                | Milnsbridge        | 15                        |
| Bottom Hall Mill - - - - -                              | do.                | 13½                       |
| Quarmby Mill (otherwise George<br>Street Mill).         | do.                | 6½                        |
| Bankhouse Mill - - - - -                                | do.                | 10                        |
| Brierley Mill - - - - -                                 | do.                | 10½                       |
| Paddock Foot Mill - - - - -                             | Huddersfield       | 18½                       |
| Longroyd Bridge Mill - - - - -                          | do.                | 7½                        |
| Engine Bridge Mill - - - - -                            | do.                | 13                        |
| King's Mill - - - - -                                   | do.                | 8½                        |



|                                                                                               |                    |                                                 | A.D. 1908. |
|-----------------------------------------------------------------------------------------------|--------------------|-------------------------------------------------|------------|
| Name of Mill.                                                                                 | Situation of Mill. | Fall of Water in Feet.                          |            |
| Bradley Mill (reputed to belong to the Executors of Cecil George Assheton Drummond deceased). | Huddersfield       | $\frac{1}{2}$ of $16\frac{1}{2} = 8\frac{1}{4}$ |            |
| Bradley Mill (reputed to belong to Joseph Thomas Hale).                                       | do.                | $\frac{1}{6}$ of $16\frac{1}{2} = 2\frac{3}{4}$ |            |
| Bradley Mill (reputed to belong to Read Holliday & Sons Limited).                             | do.                | $\frac{1}{3}$ of $16\frac{1}{2} = 5\frac{1}{2}$ |            |
| Woodhouse Mill - - - -                                                                        | do.                | $13\frac{1}{2}$                                 |            |
| Colne Bridge Mill - - - -                                                                     | do.                | 10                                              |            |
| Total fall of water -                                                                         |                    | $424\frac{1}{2}$                                |            |

THIRD SCHEDULE.

FORM A.

Notice to be given by Hoyle House Clough Mill-occupiers.

THE HUDDERSFIELD WATER ACT 1908.

TO THE MAYOR ALDERMEN AND BURGESSES OF THE COUNTY BOROUGH OF HUDDERSFIELD.

We the undersigned being the occupiers for the time being of a majority of Hoyle House Clough Mills as defined by the above Act hereby give you notice that in pursuance of the provisions of that Act we hereby require you to discharge the compensation water which by the said Act you are required to discharge into Hoyle House Clough for and in respect of each lawful working day in proportions as follows :—

To decrease [To increase] the day flow of such compensation water from the present proportion of part thereof to\* part thereof; and  
To increase [To decrease] the night flow of such compensation water from the present proportion of part thereof to† part thereof.

\* The proportion to be not less than one-half nor more than six-sevenths.

† The proportion to be not less than one-seventh nor more than one-half.

Given under our several hands this day of 19 .

| Name.                            | Mill Premises occupied. |
|----------------------------------|-------------------------|
| A.B.                             |                         |
| Witness to the Signature of A.B. |                         |
| C.D.                             |                         |
| (with address and occupation).   |                         |



FORM B.

*Notice of Meeting called by Butterley Mill-occupiers.*

THE HUDDERSFIELD WATER ACT 1908.

## BUTTERLEY COMPENSATION WATER.

\* To be not less than fourteen days after advertisement.

at \_\_\_\_\_ in the county borough of Huddersfield on<sup>st</sup>  
the \_\_\_\_\_ day of \_\_\_\_\_ 19 \_\_\_\_\_ at  
o'clock in the \_\_\_\_\_ noon.

## BUSINESS.

To consider and if approved to pass a resolution as follows :—

“ That in pursuance of and in accordance with the provisions of the  
 “ Huddersfield Water Act 1908 the Mayor Aldermen and Burgesses of  
 “ the County Borough of Huddersfield be and they are hereby required  
 “ to discharge the compensation water which they are required to  
 “ discharge from their Butterley reservoir into the Wessenden Brook  
 “ for and in respect of each lawful working day in proportions as  
 “ follows :—

† The proportion to be not less than three-fourths nor more than six-sevenths.

"To decrease [To increase] the day flow of such com-  
 "pensation water from the present proportion of part  
 "thereof to† part thereof; and

“To increase [To decrease] the night flow of such com-  
 “pensation water from the present proportion of part  
 “thereof to‡ part thereof.”

‡ The proportion to be not less than one-seventh nor more than one-fourth.

Given under our respective hands this \_\_\_\_\_ day of \_\_\_\_\_ 19. \_\_\_\_.

| Name.                                                                                                        | Mill Premises occupied. |
|--------------------------------------------------------------------------------------------------------------|-------------------------|
| <p>A.B.</p> <p>Witness to the Signature of A.B.</p> <p>C.D.</p> <p><i>(with address and occupation).</i></p> |                         |



FORM C.

A.D. 1908.

Notice of Resolution to be given by Butterley Mill-occupiers.

THE HUDDERSFIELD WATER ACT 1908.

TO THE MAYOR ALDERMEN AND BURGESSES OF THE COUNTY BOROUGH OF  
HUDDERSFIELD.

I the undersigned A.B. of C.D. being the chairman of a meeting of  
the Butterley Mill-occupiers as defined in the above Act duly convened  
and held under the provisions of that Act at the  
in the County Borough of Huddersfield on the                      day of  
19                      .

Hereby give you notice—

That at the said meeting a resolution was duly passed by [a majority]  
[the whole] of the Butterley Mill-occupiers voting at the said meeting  
as follows :—

*(Here set out verbatim the resolution passed in the form set out in Notice  
calling the meeting—Form B.)*

And I further give you notice that the Butterley Mill-occupiers as  
defined by the said Act attending the said meeting were as follows :—

| Name. | Mill Premises occupied. |
|-------|-------------------------|
|       |                         |
|       |                         |
|       |                         |
|       |                         |
|       |                         |
|       |                         |
|       |                         |
|       |                         |
|       |                         |

Given under my hand this                      day of  
19                      .

A.B.  
Chairman of the said meeting.

Witness to the signature  
of the said A.B.

C.D.  
*(with address and occupation).*



